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DDD

To: The European Commission

Regarding: Welfare and traceability of dogs and cats (new rules) (europa.eu)

Km/23-03103
February 27, 2024

The Danish Veterinary Association's consultation response on proposals for a regulation on the breeding, registration and sale of dogs and cats

The Danish Veterinary Association (DVA) appreciate the opportunity to comment on the proposal for a regulation on the breeding, registration, and sale of dogs. We welcome the initiative, including the thorough preparatory work and the inclusion of the latest research, which we see as a crucial step towards increasing traceability and improving animal welfare for dogs and cats in the EU. Our consultation response includes general comments and specific remarks, including specific proposals for changes in various articles.

General comments – summary (refer to full text for details)

The DVA supports the need for uniform identification and registration, minimum animal welfare requirements and increased consumer safety when handing over dogs and cats. However, we point out the risks of excluding breeding facilities, shelters, and pet shops of the proposed size from the rules, as this can provide ground for illegal activities. The DVA therefore also believes that there should be a requirement that all puppies and kittens should be identified and registered in future - even if they do not origin from a commercial establishment. We also emphasize the consequences of "puppy factories", praise the necessary measures for online sales and propose a further ban on trading at marketplaces. The DVA points out that there are elements that can be implemented immediately, including a ban on ear docking, tail docking and interventions that aim to change the animal's external or natural function. In general, it is DVA's position that the Danish rules can be used to a greater extent as inspiration.

Selected commentaries on chapters (refer to full text for details)

- Article 4: We propose changes regarding exceptions to the rules and propose that the rules include teams of 3 bitches/queens and 3 litters/calendar year as well as shelters with at least 4 dogs/4 cats at a time - corresponding to the Danish rules.

- Article 6: We support rules that support healthy breeding and clarify the need for breeding programs.

- Article 9: We support training requirements for those who manage the animals.

- Article 10: We welcome welfare visits from veterinarians for all professional teams.

- Article 15: This article should enter into force immediately and should include all dogs and cats. The DVA believe that all operative interventions, including neutering, must only be conducted by veterinarians, and wish to add rules for killing cats and dogs.

- Article 17: We support that transponder implantation is done by authorized professionals.

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- Article 21: We support requirements for breeding in 3rd countries

- Annex I: We praise the requirements for feeding, watering and health for professional dog keeping, and that it is based on evidence and expert advice but point to more specific requirements cf. Danish regulations.

- Annex II: We welcome the significant initiative on the country code in the transponder for better traceability.

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1. General comments – full text

The DVA praise the initiative and the thorough work behind it in connection with an upcoming regulation. We agree that it is essential that rules are laid down within the EU at regulation level that can increase traceability and improve animal welfare for dogs and cats.

The DVA agrees that there is a lack of rules, both in terms of uniform identification and registration of dogs and cats, minimum animal welfare requirements for requirements for keeping dogs and cats, requirements in relation to breeding animals and consumer safety when transferring dogs and cats.

The DVA thus also recognizes the picture where true commercial movement of animals takes place under the cover of non-commercial movement. It is therefore essential that this problem is addressed in as many contexts as possible, including in a common set of rules that curbs the illegal traffic that takes place from third countries - by, for example, introducing requirements for traceability and a control pressure that corresponds to the activities.

The consequences caused by extensive "puppy factories" are well documented: exploitation of breeding animals in a way that compromises animal welfare, lack of focus on the physical and mental well-being of puppies and breeding animals, health hazards for animals and humans in the form of infectious (transmissible) diseases, unreasonable transport conditions and ultimately a consumer who, perhaps unaware, supports illegal activities.

However, the DVA draw attention to the risk of exempting smaller breeding facilities, shelters, and pet shops from the rules, as we find that illegal breeding and importation often make use of loopholes such as "posting" bitches, so that the breeding activity is kept below the minimum limit for the number of bitches and/or litters. We therefore encourage the requirements to be more in line with the Danish ones, including in relation to the number of animals in the establishments that must be covered by the rules.

The DVA supports the measures proposed regarding the online sale of dogs and cats, which is the dominant platform for sales/promotion. We recommend aiming for solutions like the French one, where validation of both the breeder and identification of the animal must appear in the advertisements, and verification is easy for the consumer.

It has been documented that in certain countries bitches and/or puppies are also traded on markets under questionable conditions, and we would like to see a ban on the sale of dogs and cats on markets adopted at the same time, so that commercial trade and trading agreements are based on reasonable animal welfare terms.

There are rules in the proposal which can be introduced immediately with the entry into force of the regulation, and which should not be included in the transition period – for example, a ban on ear docking, tail docking and interventions that aim to change the animal's external or natural function.

2. Commentaries on chapters

In the following, the DVA has prioritized highlighting particularly positive initiatives and making proposals for concrete changes in the text where we believe it is most necessary.

Chapter II:

Article 4.

• Regarding the exception to the rules in Chapter II, the DVA believes that the exception should only apply to herds of up to 2 bitches/queens that produce up to 2 litters/calendar year, so that the rules apply to everyone who keeps at least 3 bitches/queens and produces at least 3 litters/calendar year, corresponding to the current Danish rules.

• The proposal contains an exception for shelters with less than 10 dogs and 20 cats. The DVA believes that it should be changed in line with the Danish rules - i.e. exception to the rules for commercial operation applies to boarding facilities with *fewer* than 4 dogs/4 cats at a time.

Article 6.

• The DVA supports the establishment of rules that support healthy breeding of dogs and cats, including bans on mating between parents and offspring, grandparent animals and 2nd generation offspring.

• The DVA believes, however, that it should be clarified that the operator must ensure that inbreeding or line breeding does not occur. Line breeding is most often done with a male dog, but line breeding can also be done on bitches. Line breeding is thus also a form of inbreeding.

• The DVA believes that for breeding animals with genetic traits (e.g. brachycephaly) which clearly compromise animal welfare, breeding programs must be drawn up that enable the operators to select for a generally healthier breed. The breeding programs must be based on the latest evidence and objective guidance corresponding to, which the operators can use in practice.

• The DVA believes that there should be a ban on breeding animals that, due to genetic conditions, are unable to give birth themselves. It should be prohibited to breed such animals for planned caesarean sections.

Article 9.

• The DVA supports training requirements for those who manage the animals. The requirements must be clear and the availability of training and education easy. At the same time, it should be possible to differentiate the need for training depending on the persons' educational background and qualifications/experience with the animal species.

Article 10.

• The DVA finds it positive that establishments that fall under current legislation receive welfare visits from a veterinarian to ensure that the minimum animal welfare requirements are met, and disease prevention is optimised.

Article 12.

• 2 d) should be clarified so that it is clear that the necessary precautions must be taken regarding preventive treatment with veterinary drugs in consultation with a veterinarian, including that prescription drugs are prescribed for the animal in question.

Article 14.

• The DVA suggests that it be added that any handling of the animals must be done with the least possible stress for the animal. Situations, as described, where it may be necessary to limit the animal's natural movements for a shorter period, must be done without undue coercion and be of the shortest possible duration. In some situations, it may be necessary to have a veterinarian to sedate the animal, to avoid unnecessary anxiety and discomfort in connection with the procedure.

Article 15.

• This article should come into force immediately and should cover all dogs and cats. It should be clearly stated that this applies to all dogs and cats.

• With regard to painful procedures, the DVA finds it positive that the EU bans this type of procedure, which does not aim to improve the animal's health, but only to change the animal's exterior/function.

• We believe that it should be stated that all operative interventions, including neutralization, must only be carried out by veterinarians.

• The DVA welcomes the introduction of a ban on unnatural and painful handling of cats and dogs in the examples mentioned.

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• The DVA wishes to add that the euthanising of dogs and cats, including kittens and puppies, regardless of age, may only be carried out using recognized methods and by veterinarians or persons approved for this purpose by the respective authorities.

Chapter III

Article 17.

• Transponder implantation must be done by a veterinarian or other authority-approved (registered) ID markers. We do not believe that everyone should be able to implant a transponder under the veterinarian's responsibility, as this could lead to microchips are handed out to unregistered persons and come into circulation without the possibility of appointing a responsible person.

• The DVA supports that the transponder must contain a country code that ensures the traceability of the animal (Annex II) and that the animal is initially registered to the breeder.

Chapter IV

Article 19.

• The DVA finds it positive that national registers for dogs and cats must be secured and communicate with a central database.

Chapter V

Article 21.

• The DVA finds it positive that requirements are set for the breeding of dogs and cats in third countries prior to importation into the EU. The traffic of illegally imported puppies often takes place from third countries, via e.g., Poland, Germany and Sweden to Denmark, and trade agreements and increased control pressure can hopefully contribute to improving the current situation for the animals and consumers.

• The DVA considers it ambitious that the registration must be conducted by the responsible/owner of the animal no later than 48 hours after entering the EU member state, as a registration should not be able to be entered by an owner himself directly into the system due to the risk of error. It should be considered whether to give the administration of the register the opportunity to fulfil the conditions, for example by making it the duty of the person in charge/owner to convey the necessary information to the national register within 48 hours of arrival at the latest, and that the registration must be carried out by the register within a more precisely defined period that is realistic.

Annex I

• The DVA finds it positive that concrete requirements are set for feeding, watering, temperature, light, and humidity for professional teams, and that this is done based on the latest evidence and

recommendations from expert environments. Likewise, requirements are made for the animals' health and fitness before breeding, behavioural needs/socialization and separation as needed.

• Particularly for the cats, however, there are deficiencies in terms of more specific requirements for enrichment, such as access at height, play equipment, hiding places, and that all cats need to have access to a litter box.

Annex II

• The DVA would particularly like to praise the initiative on the country code in the transponder. This is an especially important step to ensure better traceability and reduce the risk of illegal imports.

We look forward to continuing constructive dialogue and cooperation to strengthen animal welfare and combat illegal activities within dog and cat breeding in the EU, and we are of course available for questions regarding the above.

With best regards,

Karin Melsen,

Policy Advisor, The Danish Veterinary Association